

TENTATIVE RULING FOR July 21, 2026

Department S22 – Judge David Driscoll

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You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

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CIVSB2311192

KEENAN ALAMI v. ADEBOLA DAWODU, et al.

TENTATIVE RULING

This is a breach of contract case. On May 19, 2023, Plaintiff Keenan Alami filed a Complaint against Defendants Adebola Dawodu, Toyin Dawodu, and Andre Prado.

On May 7, 2024, Plaintiff filed the operative Second Amended Complaint alleging causes of action for breach of contract and common counts.

Plaintiff alleges that from July 14, 2022, to the present, he and Defendants entered into an oral agreement in which Plaintiff agreed to loan the sum of \$20,000 to Defendants (Subject Loan). The Subject Loan was made “on a short term basis,” which was to be repaid within two weeks. Plaintiff performed all obligations to Defendants, except those terms in which he was prevented from performing. Defendant Adebola Dawodu advised Plaintiff that his father, Defendant Toyin Dawodu, would guarantee the loan should Defendant Adebola Dawodu fail to “pull himself up.” Furthermore, a pink slip to a sand rail dune buggy owned by Defendant Prado was given to Plaintiff as collateral to secure the Subject Loan. On January 25, 2023, the Fontana Police Department seized the sand rail dune buggy because it was reported stolen by Defendant Prado. Plaintiff made repeated unsuccessful attempts to get Defendants to repay him and now seeks \$20,000 in damages.

On May 28, 2024, this Court granted Defendants Toyin Dawodu and Adebola Dawodu’s Motion to Deem Matters Admitted. Subsequently, on March 11, 2026, this Court granted Defendant Toyin Dawodu’s

motion for summary judgment. And on April 7, 2026, this Court granted Defendant Adebola Dawodu's motion for summary judgment.

On May 1, 2026, Plaintiff filed the instant motions for reconsideration and to set aside the Court's ruling on the Motion to Deem Matters Admitted and on the Motion for Summary Judgment with respect to Defendant Adebola Dawodu. And on May 14, 2026, Plaintiff filed the same motions as to Defendant Toyin Dawodu.

Both Defendants each oppose both motions.

Given that Plaintiff has filed the identical motions as against defendants Adebola Dawodu and Toyin Dawodu, and said defendants have filed identical opposition to the motions, the court intends to advance the hearing date for the motions directed to defendant Adebola Dawodu (7/22/26) to the date of the hearing of the motions directed to defendant Toyin Dawodu (7/21/26).

CCP § 1008—Standard of Review.

A motion for reconsideration must: (1) be made within 10 days after service of the notice of entry of the order or ruling; (2) be based on new or different facts, circumstances or law; and (3) be accompanied by a declaration stating what previous "application" was made, the ruling thereon, and what new or different facts, circumstances or law are claimed to exist. (Code Civ. Proc., § 1008, subd. (a).)

The burden under Section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (*New York Times Co. v. Sup.Ct. (Wall St. Network, Ltd.)* (2005) 135 Cal.App.4th 206, 212-213.) A party seeking reconsideration of a prior order based on "new or different facts, circumstances, or law" must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence. (*California Correctional Peace Officers Ass'n v. Virga* (2010) 181 Cal.App.4th 30, 47, fn. 15.)

A motion for reconsideration is properly denied where based on evidence that could have been presented in connection with the original motion. (*Morris v. AGFA Corp.* (2006) 144 Cal.App.4th 1452, 1460; *Hennigan v. White* (2001) 199 Cal.App.4th 395, 406.)

Analysis.

Request for Admissions (RFA).

First, Plaintiff moves for reconsideration and to set aside the order deeming the request for admissions admitted. The motion is styled as both a motion for reconsideration as well as brought pursuant to Code of Civil Procedure section 473, subdivision (b) on the grounds of mistake, inadvertence, and/or excusable neglect. Essentially, Plaintiff claims he was never served with the Request for Admissions.

Procedurally, Code of Civil Procedure section 473 is not the proper basis for relief. (See e.g., *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979-980 (*Wilcox*) [discussing that Code of Civil Procedure section 473 was a proper basis prior to the enactment of section 2033 in 1986].)

The relief sought here is controlled by Code of Civil Procedure section 2033.300 and states:

- (a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties.

(b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits.

(c) The court may impose conditions on the granting of the motion that are just, including, but not limited to, the following:

(1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission.

(2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.

(Emphasis added.)

Because the discovery statutes applicable to RFAs set out the conditions to obtain relief from the failure to respond to RFAs, relief is not available under section 473, subdivision (b). (See *St. Paul Fire & Marine Ins. Co. v. Superior Court* (1992) 2 Cal. App. 4th 843, 852, superseded by statute in *Wilcox, supra*, at p. 983, fn.12.) After an order deeming RFAs admitted has been entered, the party in default may seek relief from the order by filing a motion to withdraw or amend the “deemed admission” pursuant to section 2033.300. (*Wilcox, supra*, 21 Cal. 4th at p. 979.)

The issue is whether the motion would be considered under section 2033.300. Under section 2033.300, subdivision (b), a party is permitted to withdraw or amend admissions only if the Court finds: (1) the admission resulted from “mistake, inadvertence or excusable neglect” and (2) no substantial prejudice to the other party will result. (*New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1418-1419.)

Given the elements, the showing is similar to that under section 473, subdivision (b), which allows an order to be set aside based on mistake, inadvertence, or excusable neglect. But “surprise” is not a basis under which relief is granted under section 2033.300. In addition, a showing of the “absence of substantial prejudice” is required.

The trial court has the authority and discretion to disregard the label attached to a motion and construe it as a different type of motion provided the basis for relief is consistent with the request being made and procedural requirements are satisfied. (See *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 192-193 (treating a motion for reconsideration as a new trial motion); *Shapiro v. Prudential Prop. & Cas. Co.* (1997) 52 Cal.App.4th 722, 728 (construing motion to vacate judgment as a motion for new trial on damages); *Pierson v. Sharp Memorial Hosp., Inc.* (1989) 216 Cal.App.3d 340, 342-343 (treating motion to strike for failure to state a cause of action as a motion for judgment on the pleadings).) In *City & County of San Francisco v. Muller* (1960) 177 Cal.App.2d 600, 603, the Court stated: “The nature of a motion is determined by the nature of the relief sought, not by the label attached to it. The law is not a mere game of words.”

Given that similar relief is allowed under section 2033.300 based on a showing of mistake, inadvertence, or excusable neglect and a showing of no substantial prejudice to the opposing party the Court will construe the motion as one under section 2033.300. But in doing so, arguments directed to claims of “surprise” are not considered.

Here, Plaintiff attached a declaration stating inadvertence caused the delay in responding to the RFAs. (Alami Decl. ¶ 2.) He contends he was never served with the discovery and did not know he could respond to any documents without such service. (¶ 3.)

The court, on its own motion, takes judicial notice of the following pleadings contained in the court files:

- The plaintiff's complaint (5/19/23) and Amended Complaint (10/3/23), which identify plaintiff's address (and therefore the location for future notices) as 6890 Acacia Avenue, Fontana, CA. 92336 (hereinafter the "*Fontana Address*").
- Plaintiff's request for Waiver of Court Fees (5/19/23) which identifies the Fontana Address as his mailing address.
- Defendants' Notice of Demurrers to the Complaint (8/4/23) with proofs of service by mail on plaintiff at his mailing address, i.e. the Fontana Address.
- Plaintiff's Opposition to the Demurrers (5/25/24), which raises the reasonable inference that the plaintiff received service of the Demurrers by Mail.
- The minute order for the hearing on the demurrers (9/14/24) wherein the plaintiff appeared (Court-Call), which again signifies that plaintiff received notice by mail at the Fontana Address.
- Defendant Adebola Dawodu's Motion to Dismiss Complaint (6/12/24) with proof of service by mail at the Fontana Address, and Plaintiff's Opposition filed 8/6/24 to the Motion to Dismiss, again signifying that plaintiff received service by mail at the Fontana Address.
- Minute Order for the date of the hearing on the Motion to Dismiss (8/29/24) indicating the personal appearance of the plaintiff, again raising the reasonable inference that plaintiff received service of notice of the hearing by mail at the Fontana Address.

A review of the Court's docket also shows that when Defendants filed their Motion to Deem the RFAs admitted (filed March 6, 2024), it is stated the RFAs themselves were served on January 22, 2024. As of March 6, 2024, there had been no responses. **Attached to that motion is a Proof of Service dated March 6, 2024 that the motion was served on Plaintiff with next day mail with tracking and it lists Plaintiff and his address of 6890 Acacia Avenue in Fontana, California.** The minute order for the hearing on the motion to deem admitted (5/28/24) reflects that the plaintiff was in personal attendance, again signifying that he received service by mail of the motion at the Fontana Address.

Attorney Christopher Brainard also attached a declaration to that motion attesting to service of the original RFAs at that same address. **There is also a proof of service attached to the Exhibit reproducing the actual discovery that was served and it confirms service of the RFAs themselves on January 22, 2024, at Plaintiff's Fontana address.** (See Court's Docket, Motion re: to Deem Matters Admitted and Mandatory Sanctions in the Amount of \$3,350, filed March 6, 2024)

Plaintiff's declaration does not establish that he was not served with the RFAs or the Motion itself. The Opposition also notes that Plaintiff appeared at the May 28, 2024 hearing and made these same arguments, which were rejected (though no declaration or transcript is attached confirming this). Nevertheless, Plaintiff has not made a sufficient showing by preponderating evidence of non-service of the underlying requests for admissions or the motion to deem the RFA's admitted. Plaintiff does not set forth any remaining grounds for reconsideration, and as noted in the Opposition, a motion on those grounds is untimely. Additionally, the plaintiff has not satisfied his burden of showing lack of prejudice to the defendants should the motion have been granted (CCP § 2033.300(b)). On the other hand, defendants allude to prejudice in the form of reliance upon the court's longstanding deemed admitted order of May 28, 2024 to obtain a summary judgment.

Motions for Summary Judgment.

Plaintiff moves for reconsideration of the motions for summary judgment pursuant to Code of Civil Procedure section 1008, subdivision (a).

The motion explains that Plaintiff contends he was not served with the RFAs, which as noted above, that argument fails. Plaintiff then argues that when the summary judgment motions were filed, Defendants erred for failing to meet and confer pursuant to Code of Civil Procedure section 439, subdivision (a). However, section 439 pertains to motions for judgment on the pleadings and not motions for summary judgment, which are governed by Code of Civil Procedure section 437c. There is no statutory requirement to meet and confer with respect to a motion for summary judgment. It then appears that Plaintiff is arguing the new facts or evidence would pertain to his ability to withdraw his deemed admissions, a text message from Prado, and a court docket from Riverside County. However, the RFAs are not grounds for new evidence, and Plaintiff fails to explain how the court docket from another unrelated matter in another county or the Prado text message constitute new evidence that could not have been obtained with reasonable diligence prior to the hearing on the MSJ.

Finally, Plaintiff argues the motion is timely because he claims he has not been served with the Notice of Entry of Order; however, this too is incorrect. The Court's docket shows that on April 10, 2026, both Defendants filed a Notice of Entry of Order Granting Summary Judgment, and they were served on Plaintiff at his updated address (updated pursuant to Notice of Change of Address filed March 5, 2026). As noted in the Opposition, these motions are also, therefore, untimely.

TENTATIVE RULING

The motions by plaintiff for reconsideration and to set aside the court's orders deeming as admitted the requests for admissions, and granting defendants' motion for summary judgment, are denied. Defendants to give notice.